IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an appeal under Section 331 of the Code of Criminal Procedure Act No. 15 of 1979 as Amended reads with Article 138 of the Provisions (Special Provisions) Act No. 19 of 1990.

Democratic Socialist Republic of Sri Lanka

Complainant

Court of Appeal Case No:
CA/HCC 162/2025

Vs,

High Court of *Rathnapura*
Case No. HCR 77/21

Malangandalage Jams Premasiri *alias* Jayanapala Atha

Accused

And Now Between

Malangandalage Hams *alias* Jayanapala Atha

Accused-Appellant

Vs,

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Respondent

Before: **Amal Ranaraja, J.**

Dr. Sumudu Premachandra, J.

Counsel: Tirantha Walaliyadde, PC with Sarith Pathirathne for the Accused-Appellant

Deleepa Peiris, A.S.G. for the State.

Argued on: 04.09.2026

Judgment on: 30.09.2026

Judgment

Amal Ranaraja. J,

1. The accused appellant (hereinafter referred to as the appellant) has been indicted in the High Court of Ratnapura in case no HCR-77-2021. The charges in the indictment are as follows;

    01. On a date between the 23rd of January, 2004 and 22nd of January, 2005, within the jurisdiction of this Court, in *Palabaddala,* you, in order to gain some sexual gratification, have used a certain part of your body, on that of one *Galathura Ambagasthanna Mudiyanselage Mahesh Maduranga Thilakasiri*, a person under 16 years of age, by placing your male genitalia between his thighs; thereby you have committed an offence of "Grave Sexual Abuse" punishable

under Section 365B (2)(b) of the Penal Code of Sri Lanka as amended by Penal Code (Amendment) Act No.22 of 1995 and No. 29 of 1998.

02. At the same time, location and course of action as the above first charge, you, in order to gain some sexual gratification, have used a certain part of your body, on that of one *Galathura Ambagasthanna Mudiyanselage Mahesh Maduranga Thilakasiri*, a person under 16 years of age, by inserting your male genitalia into his anus; thereby you have committed an offence of "Grave Sexual Abuse" punishable under Section 365B (2)(b) of the Penal Code of Sri Lanka as amended by Penal Code.

03. Between the time period specified in the above first charge, at a separate occasion than that of the above first and second charges, you, in order to gain some sexual gratification, have used a certain part of your body, on that of one *Patty Aarachchige Saman Priyankara*, a person under 16 years of age, by placing your male genitalia between his thighs; thereby you have committed an offence of "Grave Sexual Abuse" punishable under Section 365B (2)(b) of the Penal Code of Sri Lanka as amended by Penal Code (Amendment) Act No.22 of 1995 and No. 29 of 1998.

2. At the conclusion of the trial, the appellant has been convicted of the first, second and acquitted of the third charge. Thereafter, he has been sentenced as follows;

I. Fine of Rs. 10,000.00 each in respect of the first and second charges with a term of 2 months each simple imprisonment in default.

10 years rigorous imprisonment each in respect of the first and second charges and such terms of rigorous imprisonment to run concurrently.

Further, the appellant has been ordered to pay a sum Rs.100,000.00 as compensation to PW01, with a term of 6 months simple imprisonment in default.

3. The appellant being aggrieved by the conviction, disputed judgement, together with the sentencing order, has preferred the instant appeal to this Court.

Case of the Prosecution

4. The appellant has been a lay teacher of the Buddhist practice of chanting specific verses from the teachings of the Buddha, known as '*Pirith*', which is believed to ward off danger, fear, illness and bring peace and blessings. PW01 has been a student of the appellant and has regularly visited the appellant's house for lessons.

5. On the dates specified in the first and second charges, the appellant has allegedly instructed PW01 to visit his house, late in the evening to participate in a sacred ritual. The stated purpose of the ritual has been to purify a talisman and imbue it with positive intentions, thereby transforming it into a source of luck, strength and success.

6. PW01 has participated in the ritual at the appellant's house. Following the conclusion of the ritual, late in the night, PW01 has decided to spend the night at the appellant's house and subsequently gone to sleep. It is alleged that at that time, the appellant sexually abused PW01 as detailed in the first and second charges.

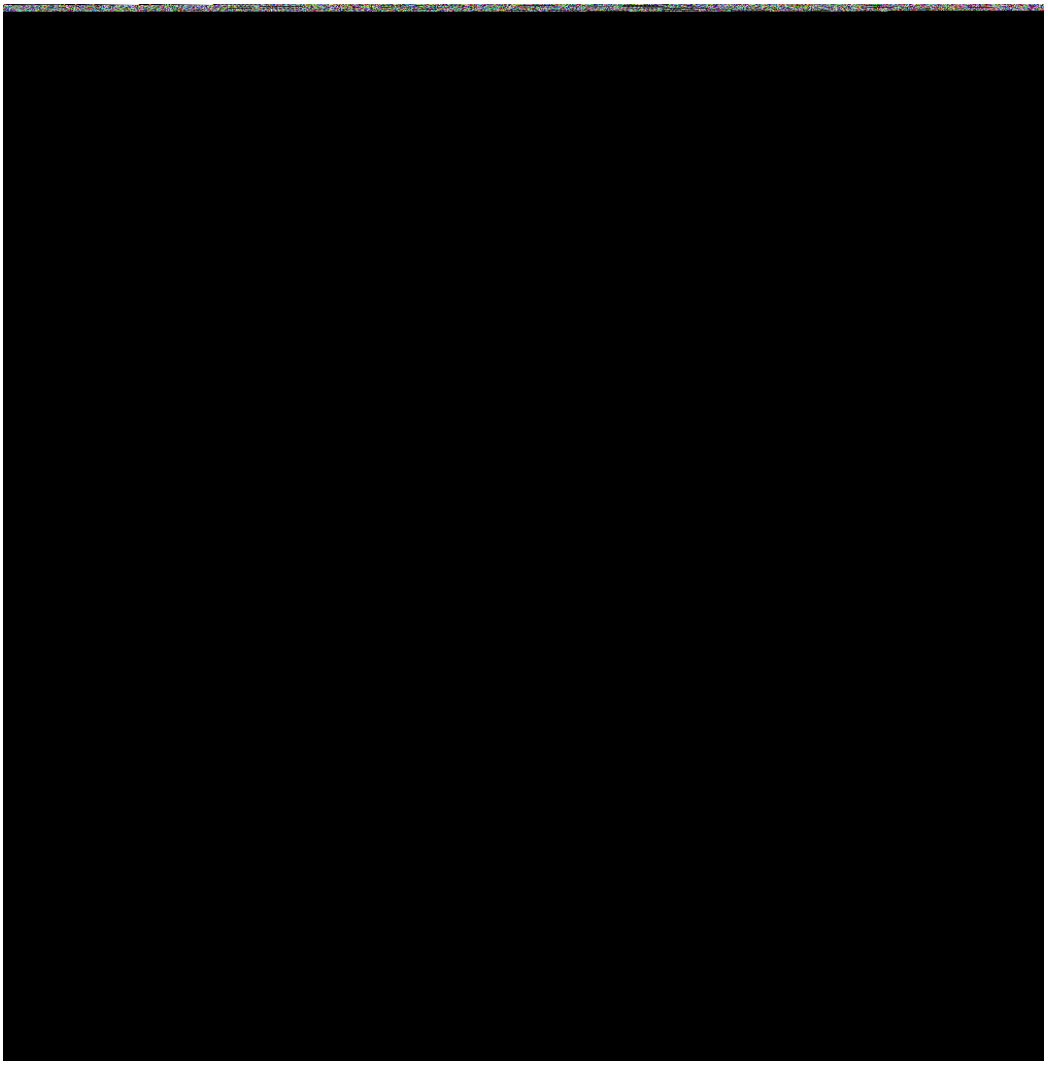
Case of the Appellant

7. The appellant has denied the incidents stated in the charges.

8. PW01 has testified as follows at the trial before the High Court;

















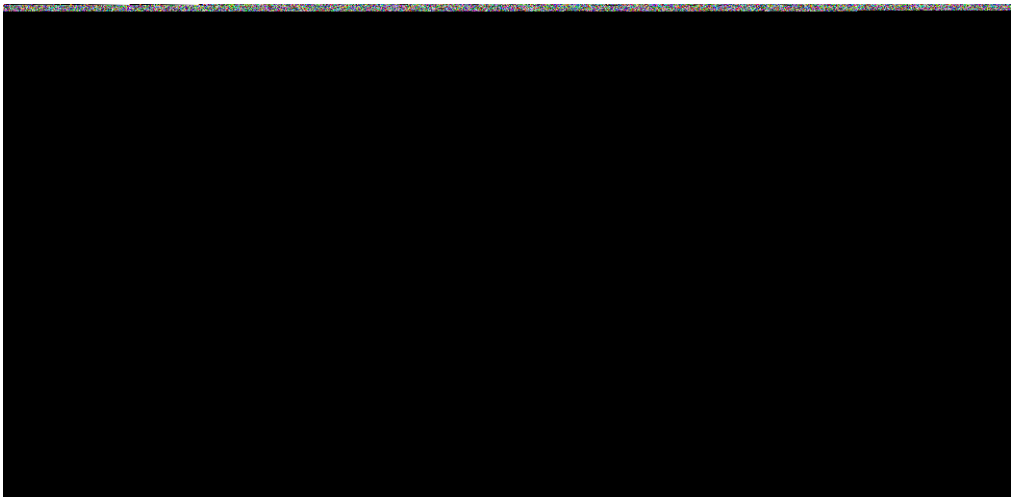




Vide Pages 61 – 68 of the Brief

9. Accordingly, PW01 has contended that the appellant indulged in intercrural sex and anal penetration with him. Although, PW01 has not disclosed the alleged incidents immediately, he has informed his mother after some delay. Thereafter, a complaint has been lodged with the police, and an investigation commenced. In the course of the investigation PW01 has been produced before *Dr. H.D.M.S.K. Dissanayaka,* a medico-legal officer for examination.

10. Before conducting the examination, *Dr. Dissanayaka* has recorded the history provided by PW01. In giving that history PW01 has stated as follows;



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11. A material contradiction refers to a discrepancy in statements or facts that undermines credibility of the information presented. In contrast, a material omission involves the intentional, or unintentional withholding of significant information, that could alter the understanding of a situation.

12. Material contradictions occur when two or more statements regarding the same fact or event are logically inconsistent. For instance, if a witness provided conflicting accounts of an incident these contradictions may undermine his testimony. This can lead to questions about witness's reliability and ultimately, affect the outcome of a case.

13. On the other hand, material omissions are equally significant. These occur when pertinent information is deliberately left out, or unintentionally disregarded. The interplay between contradictions and omissions is crucial and can severely impact the integrity of the information and by extension the decisions made based on that information.

14. As adverted to above, PW01 has testified to incidents of intercrural sex and anal penetration involving the appellant. However, when providing information to *Dr. Dissanayaka*, PW01 has made no mention of anal penetration. A discrepancy, therefore, exists between the two accounts. Since the allegation of anal penetration relates to the incident forming the subject matter of the second charge, this discrepancy is material. The Material discrepancy in turn undermines the reliability of PW01's testimony.

15. Consequently, as a matter of prudence, the Court would seek corroboration of PW01's testimony to satisfy itself as to its truthfulness. However, no such corroboration is forthcoming. *Dr. Dissanayaka*, recording the nature, size, shape, disposition and the site of injury has made a record as follows; "No evidence of anal penetration" (*Vide page 15 of the Brief)*

16. In the case of *Ajith vs Attorney General [2009] 1 Sri. LR 23*, Sisira de Abrew J, has held as follows;

> *"I hold that it is very dangerous to act on the uncorroborated testimony of a victim of a sexual offence. However, if the Court can without any hesitation, accept and believe that the story narrated by her is true then the Court can act on such evidence even without corroboration. I would like to state here that Court, in cases of rape, as a rule of prudence normally looks for corroboration of her testimony in order to satisfy its conscience that she is telling the truth."*

17. Further, in the case of *Premasiri vs. Attorney General [2006] 3 Sri. LR 106,* Eric Basnayake J, has held as follows;

> *"The rule is not that corroboration is essential before there can be a conviction in a case of rape, but the necessity of corroboration as a matter of prudence, except where the circumstances make it unsafe to dispense with it, must be present to the mind of the judge."*

18. As such, the learned High Court Judge has misdirected herself in concluding that PW01 was consistent in his testimony and therefore, a reliable witness.

19. Due to the matters referred to above, I am inclined to interfere with the conviction, the disputed judgement together with the sentencing order.

20. I acquit the appellant of the first and second charges and proceed to set aside the disputed judgement together with the sentencing order.

21. I make no order regarding costs.

Appeal allowed.

22. The Registrar of this Court is directed to send this Judgement to the High Court in *Rathnapura* for compliance.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal